



DEPARTMENT OF THE ARMY
U.S. ARMY MISSION AND INSTALLATION CONTRACTING COMMAND
418TH CONTRACTING SUPPORT BRIGADE
36000 SHOEMAKER LANE
FORT CAVAZOS, TX 76544-5025

CCMI-CHD

29 April 2025

MEMORANDUM FOR Contracting Officer, U.S. Army Mission and Installation Contracting Command -Fort Cavazos (MICC-CV), Shoemaker Lane, Darnall Loop, Building 36000, Fort Cavazos, TX 76544-5095

SUBJECT: Legal Review of Proposed Redactions to Justification and Approval for Other than Full and Open competition – Control No: 2025-66

1. BLUF: I have reviewed the proposed redactions in conjunction with regulatory guidance (Federal Acquisition Regulation (FAR), MICC desk book, and the United States Code (U.S.C.), and find no legal objection to the redactions presented.

2. References.

a. FAR 3. 104-4 Disclosure, protection, and marking of contractor bid or proposal information and source selection information.

b. FAR 24. 203 Policy

c. 5 U.S.C. § 552a Records maintained on individuals

d. 41 U.S.C. § 2102 Prohibitions on disclosing and obtaining procurement information

e. MICC Deskbook (2025) 6.305 Availability of the Justification

f. MICC Deskbook (2025) 5101.602-2-90 Legal Coordination

3. Background: On 24 April 2025, Contract Officer, Lucy Bonner, emailed the subject document to the 418th Contract Support Brigade legal inbox seeking legal review of the redacted document. In accordance with the MICC Deskbook, section 5101.602-2-90 and 6.305, the undersigned has reviewed the memorandum and find the redactions presented to be legally sufficient.

4. Discussion.

a. At issue is determining whether or not the redactions on the submitted memorandum are legally sufficient. Per the MICC deskbook, section 6.305, contracting

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officers must carefully screen all documents limiting competition for contractor proprietary data and remove all such data, references, and citations as are necessary to protect the proprietary data prior to posting. Specifically, the MICC deskbook requires that contracting officers redact all names, except that of the Approving Official, electronic signature data, and the Common Access Card code number from public view before posting.

b. Also, it should be noted, that pursuant to FAR 3.104-4, except as specifically provided for, no person or other entity may disclose contractor bid or proposal information or source selection information to any person other than a person authorized, in accordance with applicable agency regulations or procedures, by the agency head or the contracting officer to receive such information.¹ This particular regulation further provides that Contractor bid or proposal information and source selection information must be protected from unauthorized disclosure in accordance with 14.401, 15.207, applicable law, and agency regulations.

c. Lastly, FAR 24 discusses the protection of individual privacy and outlines the policies and procedure that apply requirements of the Privacy Act of 1974 (5 U.S.C. 552a). The Privacy Act prohibits agencies from disclosing information contained in a system of records without the written consent of the individual to whom the record pertains unless such disclosure fits in one of the twelve exemptions. See. 5 U.S.C. §552a(b)(1-12). These exemptions include disclosures based on a need-to know basis, disclosure mandated by court order, and disclosure in response to a Freedom of Information Act request. Further, FAR 24.203, specifically addresses additional exemptions to public disclosure of certain records. These exemptions include matters relating to classified information, to trade secrets and confidential commercial or financial information, to interagency or intra-agency memoranda, or to personal and medical information pertaining to an individual. Other exemptions include agency personnel practices, and law enforcement. In sum, the aforementioned matters listed are not subject to disclosure and are required to be redacted from the J&A at issue.

d. Consistent with the regulatory guidance provided, the contracting officer has properly redacted the memorandum. As submitted, the document appears to be in compliance and the above listed legal rationale sets forth the basis for said redactions. Of note, should the contractor identify other items to be redacted, the undersigned recommends that we discuss the issue to determine if an amended version should be submitted.

¹ 41 U.S. Code § 2102 also provides that except as provided by law, a person described in paragraph (3) shall not knowingly disclose contractor bid or proposal information or source selection information before the award of a Federal agency procurement contract to which the information relates.

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5. Point of contact for this legal review is the undersigned at (254)-553-8756 or yolanda.y.williams8.mil@army.mil.

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MAJ, JA
Command Judge Advocate

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